

OBJECTIVE QUESTIONS FOR PRACTICE

1. Consider the following statements:

1. It acknowledged the Company's Political and Administrative roles for the first time.
2. Governor General of Bengal was designated as Governor General of India.
3. Lord Warren Hastings was the first Governor General of Bengal.
4. The Supreme Court at Bombay was established.
5. It prohibited the servants of the Company from engaging in any private trade.

How many of the above statements are the principal features of the Regulating Act, 1773?

- (a) Only two (b) Only three
(c) Only four (d) All five

Ans: (b)

Statement 1 is correct: Regulating Act of 1773 is of great Constitutional importance as it was the first step taken by the British Government to control and regulate the affairs of the East India Company in India. It recognized, for the first time, the Political and Administrative functions of the Company; and it laid the foundations of Central Administration in India.

Statement 2 is incorrect: It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him.

Statement 3 is correct: The first such Governor-General was Lord Warren Hastings. It made the Governors of Bombay and Madras presidencies subordinate to the Governor-General of Bengal, unlike earlier when the three presidencies were independent of one another.

Statement 4 is incorrect: It provided for the establishment of a Supreme Court at Calcutta (1774) comprising one Chief Justice and three other judges.

Statement 5 is correct: It prohibited the servants of the Company from engaging in any private trade or accepting presents or bribes from the 'natives'. It strengthened the control of the British Government over the Company by requiring the Court of Directors (governing body of the Company) to report on its Revenue, Civil, and Military affairs in India.

2. Consider the following statements regarding Regulating Act of 1773:

1. It raised the status of Governor of Bengal to Governor General, with council of six members.
2. It provided for the establishment of a Supreme Court of Justice at Calcutta.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans: (b)

The British Parliament passed its first important Act in 1773, called the Regulating Act to control the Company's Administration. The Act made changes in the Constitution of the Company at home; the whole of the territories in India were subjected to some degree of control.

Statement 1 is incorrect: In the field of executive government, the status of Governor of Bengal was raised to Governor General. His Council would consist of four members. The Governor General in Council was given the power to superintend and control the presidencies of Madras and Bombay in matters of war and peace.

Statement 2 is correct: The Act did establish a Supreme Court at Calcutta in 1774, marking the first time a British court was set up in India with jurisdiction over British subjects and the Company's officials.

3. With reference to the historical background of the Indian Constitution, which one of the following statements is correct?

- (a) The Regulating Act of 1773 strengthened the powers of the Court of Directors against British government.
- (b) The Governor general of India was brought under the jurisdiction of Supreme court by an amending Act of 1781.
- (c) The Board of control was created to manage political affairs under the Pitt's India Act.
- (d) The Charter Act of 1793 provided that the Commander-in-chief was to be a member of the Governor general's council without any separate appointment.

Ans: (c)

Option (a) is incorrect: The Regulating Act of 1773 was of great constitutional importance as it was the first step taken by the British Government to control and regulate the affairs of the East India Company in India. It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him. It strengthened the control of the British Government over the Company by requiring the Court of Directors to report on its revenue, civil, and military affairs in India.

Option (b) is incorrect: The Regulating Act of 1773 provided for the establishment of a Supreme Court at Calcutta (1774) comprising one chief justice and three other judges. The amending Act of 1781 exempted the Governor-General and the Council from the jurisdiction of the Supreme Court for the acts done by them in their official capacity.

Option (c) is correct: The Pitt's India Act of 1784 distinguished between the commercial and political functions of the Company. The act allowed the Court of Directors to manage the commercial affairs and created a new body called Board of Control to manage the political affairs. The act empowered the Board of Control to supervise and direct all operations of the civil and military government or revenues of the British possessions in India.

Option (d) is incorrect: The Charter Act of 1793 provided that the Commander-in-Chief was not to be a member of the Governor-General's council, unless he was so appointed. It laid down that the members of the Board of Control and their staff were to be paid out of the Indian revenues.

4. Which one of the following statement is *incorrect* regarding the Charter Act of 1833?

- (a) Governor General in Council were given the power to legislate for the whole of the British territories in India.
- (b) Governor General of Bengal became the Governor General of India.
- (c) It added a law member to the Executive council of the Governor General, with voting power.
- (d) The monopoly of tea trade with China was abolished.

Ans: (c)

Option (a) is correct: By the Act of 1833, the Governor General in Council were given the power to legislate for the whole of the British territories in India. These laws were applicable to all persons, British or Indian foreigners or others and to the servants of the Company. They were enforceable by all courts in India.

Option (b) is correct: The Governor General of Bengal became the Governor General of India. The Governor General in Council was to control, superintend and direct the civil and military affairs of the Company. Bombay, Bengal, Madras and other regions were subjected to the complete control of the Governor General in Council.

Option (c) is incorrect: The Act added one more member to the Executive Council of the Governor General, the

☐ Law Member, whose work was fully legislative. He had no vote in the Council and he was to attend meetings, on invitation. But he practically became a regular member of the council. Lord Macaulay, the Law member, influenced the educational policy of the government for a number of years.

Option (d) is correct: The monopoly of the tea trade with China was abolished. The Company was to have only political functions. India was to pay the Company's debts. Its shareholders were guaranteed a dividend of 10.5 per cent per annum.

5. Consider the following:

- 1. The Governor of Bombay was deprived of his legislative powers.
- 2. The Governor of Madras was vested with all civil and military powers in India.
- 3. It made Warren Hastings the first Governor-General of India.

How many of the statements given above are correct with respect to the Charter Act of 1833?

- (a) Only one
- (b) Only two
- (c) All three
- (d) None

Ans: (a)

Statement 1 is correct: Through the Charter Act of 1833, the Governors of Bombay and Madras were deprived of their legislative powers, and the Governor-General of India was vested with the same for the entire India.

This Act made the Governor-General of Bengal as the Governor-General of India and vested in him all the civil and military powers. Lord William Bentick was the first Governor-General of India, while Lord Warren Hastings was the first Governor-General of Bengal. **Hence, statement 3 is incorrect.**

Other features of the Charter Act of 1833:

- ☐ The Act made the Governor-General of Bengal as the Governor-General of India and vested in him all civil and military powers. Thus, the act created, for the first time, a government of India having authority over the entire territorial area possessed by the British in India. **Hence, statement 2 is incorrect.**
- ☐ The Act ended the activities of the East India Company as a commercial body, which became a purely administrative body. It provided that the company's territories in India were held by it 'in trust for His Majesty, His heirs and His successors'.

6. Consider the following statements:

- 1. The Charter Act of 1853 initiated maiden local representation in the central legislative council.
- 2. The Board of Control and Courts of Directors were abolished by the Indian Councils Act of 1861.
- 3. The Indian Councils Act of 1892 allowed a non-official majority in the provincial legislative councils.

How many of the statements given above are correct?

- (a) Only one
- (b) Only two
- (c) Only three
- (d) None

Ans: (a)

Statement 1 is correct: The Charter Act of 1853 introduced, for the first time, local representation in the Indian (Central) Legislative Council. Of the six new legislative members of the Governor General's council, four members were appointed by the local (provincial) governments of Madras, Bombay, Bengal and Agra.

Statement 2 is incorrect: The Government of India Act of 1858 ended the system of double Government by abolishing the Board of Control and Court of Directors. Indian Councils Act of 1861 made a beginning of representative institutions by associating Indians with the law-making process. It initiated the process of decentralisation by restoring the legislative powers to the Bombay and Madras Presidencies.

Statement 3 is incorrect: The Indian Councils Act of 1892 increased the number of additional (non-official) members in the Central and provincial legislative councils, but maintained the official majority in them. The Indian Councils Act of 1909 retained official majority in the Central legislative council, but allowed the provincial legislative councils to have a non-official majority.

7. Which of the following statements is correct regarding the Government of India Act 1858?

- (a) It ended the activities of the East India Company as a commercial body, which became a purely administrative body.
- (b) It created for the first time a new body called the Board of Control to manage political affairs.
- (c) It established a 15-member council of India to assist the Secretary of State for India.
- (d) It introduced an open competition system for the selection and recruitment of civil servants.

Ans: (c)

The Government of India Act 1858, known as the Act for the Good Government of India, abolished the East India Company and transferred the powers of government, territories, and revenues to the British Crown.

The features of this Act were as follows:

1. It provided that India, henceforth, was to be governed by, and in the name of, Her Majesty. It changed the designation of the Governor-General of India to that of Viceroy of India. He was the direct representative of the British Crown in India. Lord Canning thus became the first Viceroy of India.
2. It ended the system of double government by abolishing the Board of Control and Court of Directors.
3. It created a new office, the Secretary of State for India, vested with complete authority and control over Indian administration. The secretary of state was a member of the British Cabinet and was ultimately responsible to the British Parliament.
4. It established a 15-member council of India to assist the Secretary of State for India. The council was an advisory body. The secretary of state was made chairman of the council. (Hence, option (c) is correct.)
5. It constituted the Secretary of State-in Council as a body corporate capable of suing and being sued in India and in England.

The Act of 1858, however, primarily focused on enhancing the administrative framework through which the Indian government was to be overseen and managed from England. The local Indian government system was mostly unaffected by it.

8. Consider the following statements:

1. Establishment of Office for Secretary of State and Viceroy.
2. Reduction in the role of legislative councils.
3. Representation of broader Indian population in councils.
4. Changes in the judicial system.

How many of the above were introduced by the Government of India Act, 1858?

- (a) Only one
- (b) Only two
- (c) Only three
- (d) All four

Ans: (b)

The Government of India Act of 1858, also known as the Act for the Better Government of India, was a significant piece of legislation during the British colonial rule in India. It marked a major shift in the governance of India. Here are some key features of the Act:

Transfer of Power: The Act transferred the governance of India from the British East India Company to the British Crown. India became a formal possession of the British Crown, and the British government assumed direct control over India.

Governor-General: The Act established the office of the Secretary of State for India and the Viceroy of India. The Viceroy was appointed by the British Crown and served as the representative of the British monarch in India. The Governor-General of India became the Viceroy. Hence, statement 1 is correct.

Legislative Councils: The Act expanded the role of legislative councils. It allowed for the creation of legislative councils at the provincial (presidency) level, where laws could be made, amended, or repealed. These councils included both official and non-official members. Hence, statement 2 is incorrect.

Indian Representation: While the Act introduced legislative councils, Indian representation was limited and did not reflect the broader Indian population. The majority of members were British officials. Hence, statement 3 is incorrect.

Financial Control: The Act gave legislative councils limited control over financial matters, including the authority to discuss the budget and finances. However, real financial control remained with the British government.

Legal Reforms: The Act brought about legal reforms, including changes in the judicial system. It established high courts and district courts. Hence, statement 4 is correct.

Indian Council: The Act created the Indian Council, consisting of members nominated by the Viceroy, to assist in the administration of India. This council played an advisory role.

9. The Indian Councils Act of 1861 introduced which of the following provisions into India for the first time?

1. Power to issue ordinances in Indian administration.
2. Nomination of Indians as non-official members to the Viceroy's council.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans: (c)

The Indian Councils Act of 1861 marked the beginning of legislative reforms in India.

1. The Act allowed the Viceroy to issue ordinances during emergencies when the legislative council was not in session. Hence, statement 1 is correct.
2. The Act introduced the nomination of Indians as non-official members to the Viceroy's council, allowing for limited Indian representation in the legislative process. Hence, statement 2 is correct.

PW Only IAS Extra Edge:

- It expanded the legislative council to include both official and non-official members.
- It also provided for the establishment of new legislative councils for Bengal, North-Western Frontier Province (NWFP) and Punjab, which were established in 1862, 1866 and 1897 respectively.
- It differentiated between legislative and executive functions. Thus bringing in the separation of powers.
- It initiated the restoration of Provincial Powers by returning legislative powers to the Bombay and Madras presidencies.
- It retained the power of the Governor-General to veto bills.

10. Consider the following statements regarding Indian Councils Act of 1861:

1. Indian participation in law-making was recognized for the first time.
2. Bombay and Madras presidencies were made subordinate to Bengal.
3. Portfolio system was introduced for the first time.

How many of the above statements is/are correct?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (b)

The Indian Councils Act of 1861 is an important landmark in the Constitutional and Political history of India.

Statement 1 is correct: It made a beginning of representative institutions by associating Indians with the law-making process. It provided that the Viceroy should nominate some Indians as non-official members of his expanded Council. In 1862, Lord Canning, the then Viceroy, nominated three Indians to his legislative council: the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.

Statement 2 is incorrect: It initiated the process of decentralisation by restoring the Legislative powers to the Bombay and Madras Presidencies. It reversed the

centralising tendency that started from the Regulating Act of 1773 and reached its climax under the Charter Act of 1833. This policy of legislative devolution resulted in the grant of almost complete internal autonomy to the provinces in 1937. It also provided for the establishment of new legislative councils for Bengal, North-Western Frontier Province (NWFP) and Punjab, which were established in 1862, 1866 and 1897 respectively.

Statement 3 is correct: It empowered the Viceroy to make rules and orders for the more convenient transaction of business in the council. It also gave recognition to the 'Portfolio' system, introduced by Lord Canning in 1859, and Indian Councils Act of 1861 gave recognition to the 'portfolio' system. Under this, a member of the Viceroy's council was made in-charge of one or more departments of the government and was authorised to issue final orders on behalf of the council on matters of his departments. It empowered the Viceroy to issue Ordinances, without the concurrence of the legislative council, during an emergency. The life of such an ordinance was six months.

11. Consider the following statements with respect to the Indian Councils Act, 1892:

1. The Act raised the number of non-official members only in the Central Legislative Council.
2. The Members of the Council were given the right to vote on the Budget.
3. This Act introduced the system of Dyarchy for the first time in India.

How many of the above statements are correct?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (d)

The Indian Council Act 1892 - Key Provisions:

Statement 1 is incorrect: It raised the number of (non-official) members in the Central and Provincial Legislative Councils while keeping the official majority.

- The Act made it clear that the members appointed to the Council were not there as representatives of any Indian body, but as nominees of the Governor-General.

Statement 2 is incorrect: Members could now debate the Budget without having the ability to Vote on it. They were also barred from asking follow-up questions.

- The elected members were permitted to discuss official and internal matters.
- The Governor-General in Council was given the authority to set rules for member nomination, subject to the approval of the Secretary of State for India.
- To elect members of the councils, an indirect election system was implemented.

Statement 3 is incorrect: The dual scheme of governance 'Dyarchy' was introduced for the first time by the Government of India Act of 1919 and not by Indian Councils Act of 1892.

12. Consider the following statements regarding Morley-Minto reforms, 1909:

1. The reforms introduced the concept of separate electorates for Muslims.
2. It allowed the central legislative council to have a non-official majority.
3. It enlarged the deliberative functions of the legislative councils at both the central and provincial levels.

How many of the statements given above are correct?

(a) Only one (b) Only two

(c) All three (d) None

Ans: (b)

Statement 1 is correct: The Morley-Minto reforms, also known as the Indian Councils Act of 1909, introduced a system of communal representation for Muslims by accepting the concept of 'Separate Electorate'. Under this, the Muslim members were to be elected only by Muslim voters. Thus, the Act 'legalised communalism' and Lord Minto came to be known as the father of communal electorate.

Statement 2 is incorrect: The Morley-Minto reforms retained the official majority in the central legislative council but allowed the provincial legislative councils to have a non-official majority.

Statement 3 is correct: The legislative councils at the centre and the provinces increased in size. The Imperial Legislative Council was expanded, and provincial legislative councils were established for the major provinces, extending the deliberative functions of the legislative councils at both levels. For example, members were allowed to ask supplementary questions, move resolutions on the budget, and so on.

13. Consider the following statements regarding the Government of India Act 1919:

1. It retained the official majority in the Central legislative council but allowed the provincial legislative councils to have the non-official majority.
2. The Act provided for the association of Indians with the executive councils of the Viceroy and Governors for the first time.
3. It introduced bicameralism and direct elections in the country for the first time.

How many of the statements given above are correct?

(a) Only one (b) Only two

(c) All three (d) None

Ans: (a)

Statement 1 is incorrect: The Government of India Act 1909 retained the official majority in the Central legislative council but allowed the provincial legislative councils to have a nonofficial majority.

Statement 2 is incorrect: The Government of India Act 1909 provided (for the first time) for the association of Indians with the executive councils of the Viceroy and Governors. Satyendra Prasad Sinha became the first Indian to join the Viceroy's executive council. He was appointed as the Law Member.

Statement 3 is correct: The Government of India Act 1919 introduced for the first time, bicameralism and direct elections in the country. Thus, the Indian legislative council was replaced by a bicameral legislature consisting of an Upper House (Council of State) and a Lower House (Legislative Assembly). The majority of members of both the Houses were chosen by direct election.

Some other important provisions of the Government of India Act 1919 are:

- It relaxed the central control over the provinces by demarcating and separating the central and provincial subjects. The central and provincial legislatures were authorised to make laws on their respective list of subjects.
- It further divided the provincial subjects into two parts—transferred and reserved.
- It extended the principle of communal representation by providing separate electorates for Sikhs, Indian Christians, Anglo-Indians, and Europeans.

14. Which one of the following Acts transferred the subject of 'Cooperation' from the Government of India to the Provincial Governments?

- (a) Indian Councils Act of 1909
- (b) Indian Councils Act of 1892
- (c) Government of India Act 1919
- (d) Government of India Act 1935

Ans: (c)

The Government of India Act of 1919 was the legislation that transferred the subject of 'Cooperation' from the central Government of India to the Provincial Governments. This change was part of a broader framework introduced under the Act, known as dyarchy, which aimed to decentralize certain administrative responsibilities to allow greater provincial autonomy.

The 'Cooperation' sector, which primarily involved activities like cooperative societies, credit unions, and agriculture-related cooperative movements, was seen as a key area where local administration and understanding could be more effective. Since cooperation directly affected rural development, agricultural production, and local economies, it was deemed more practical and efficient to manage these functions at the provincial level, closer to the people involved.

15. Consider the following statements:

1. The Jawaharlal Nehru Committee demanded a bill of rights in 1928 during India's freedom struggle.
2. The primary concern of Indian nationalists when demanding a set of written rights was protection against the arbitrary exercise of state power.
3. The Simon Commission and the Joint Parliamentary Committee accepted the idea of enacting fundamental rights in India in 1935.

How many of the statements given above are correct?

- (a) Only one
- (b) Only two
- (c) All three
- (d) None

Ans: (a)

Statement 1 is incorrect: The Motilal Nehru Committee, also known as the Nehru Report, was formed in 1928 under the chairmanship of Motilal Nehru. This committee was appointed by the Indian National Congress to draft a constitution for India as a response to the Simon Commission, which had no Indian representation. The Nehru Report recommended various constitutional reforms for India, including the demand for a bill of rights. The demand for a bill of rights in the Nehru Report was significant because it emphasized the need for protecting and enshrining the rights of Indian citizens in the future Constitution of India.

Statement 2 is correct: The primary concern of Indian nationalists when demanding a set of written rights, known as fundamental rights, was to protect against the arbitrary exercise of state power. They wanted to ensure that the new Indian government, once independent from British colonial rule, would not misuse its power and violate the rights and freedoms of Indian citizens.

Statement 3 is incorrect: The Simon Commission and the Joint Parliamentary Committee did not accept the idea of enacting Fundamental Rights in India in 1935. In fact, they rejected the idea primarily because they believed that declarations of rights without effective means of enforcement were useless. Their perspective was rooted in maintaining British colonial interests in India rather than prioritizing the protection of individual rights.

16. Consider the following statements:

Statement-I: Mahatma Gandhi undertook a fast unto death in Yerawada Jail (Poona) in protest against communal awards.

Statement-II: The award not only continued separate electorates for the Muslims, Sikhs, and Indian Christians, Anglo-Indians and Europeans, but also extended it to the depressed classes (scheduled castes).

Which one of the following is correct in respect of the above statements?

- (a) Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- (b) Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
- (c) Statement-I is correct but Statement-II is incorrect
- (d) Statement-I is incorrect but Statement-II is correct

Ans: (a)

Statement-II is correct: In August 1932, Ramsay MacDonald, the British Prime Minister, announced a scheme of representation for minorities, which came to be known as the Communal Award. The award not only continued separate electorates for Muslims, Sikhs, Indian Christians, Anglo-Indians and Europeans but also extended it to the depressed classes (scheduled castes).

Statement-I is correct: Gandhiji was distressed over this extension of the principle of communal representation to the depressed classes and undertook fast unto death in Yerawada Jail (Poona) to get the award modified.

At last, there was an agreement between the leaders of the Congress and the depressed classes. The agreement, known as Poona Pact, retained the Hindu joint electorate and gave reserved seats to the depressed classes.

17. Consider the following statements:

- 1. Indian Council Act of 1919 allowed the provincial legislative councils to have non-official majority for the first time.
- 2. The Government of India Act of 1935 introduced bicameralism and direct elections in the country for the first time.
- 3. The Indian trade was thrown open to all British merchants for the first time through the Charter Act of 1813.

How many of the statements given above are correct?

- (a) Only one
- (b) Only two
- (c) All three
- (d) None

Ans: (a)

Statement 1 is incorrect: The Indian Councils Act of 1909 is also known as Morley-Minto Reforms (Lord Morley was the then Secretary of State for India and Lord Minto was the then Viceroy of India). It retained an official majority in the Central legislative council but allowed the provincial legislative councils to have a non-official majority.

Statement 2 is incorrect: The Government of India Act of 1919 came into force in 1921. It introduced, for the first time, bicameralism and direct elections in the country. Thus, the Indian legislative council was replaced by a bicameral legislature consisting of an Upper House (Council of State) and a Lower House (Legislative Assembly). The majority of members of both the Houses were chosen by direct elections.

Statement 3 is correct: Through the Charter Act of 1813, the Company was deprived of its monopoly of trade with India. It was allowed to continue with its monopoly of trade with China for the next 20 years. The Indian trade was thrown open to all British merchants.

18. Which of the following features of the Indian Constitution have been borrowed from the Government of India Act 1935?

- 1. Office of Governor
- 2. Emergency Powers
- 3. Public Service Commissions
- 4. The method of election of the President

Select the correct answer using the code given below:

- (a) 3 and 4 only
- (b) 1, 2 and 3 only
- (c) 1, 2 and 4 only
- (d) 2, 3 and 4 only

Ans: (b)

Point 1, 2 and 3 are correct: The Constitution of India has borrowed its provisions from the Constitutions of various other countries as well as from the Government of India Act of 1935. The structural part of the Constitution is, to a large extent, derived from the Government of India Act of 1935. The Federal Scheme, Judiciary, Governors, Emergency Powers, the Public Service Commissions and most of the administrative details are drawn from this Act.

Point 4 is incorrect: The method of election of the President of India has been borrowed from the Irish Constitution.

19. With reference to the Government of India Act of 1935, consider the following statements:

1. It abolished dyarchy in the provinces while providing the adoption of dyarchy at the Centre.
2. It introduced bicameralism in all of eleven provinces.
3. It abolished the Council of India, established by the Government of India Act of 1858.

Which of the statements given above are correct?

- (a) 1 only (b) 2 and 3 only
(c) 1 and 3 only (d) 1, 2 and 3

Ans: (c)

Statement 1 is correct: The Government of India Act of 1935 abolished dyarchy in the provinces and introduced 'provincial autonomy' in its place. The provinces were allowed to act as autonomous units of administration in their defined spheres. Moreover, the Act introduced responsible Governments in provinces; that is, the Governor was required to act with the advice of ministers responsible to the provincial legislature. It provided for the adoption of dyarchy at the Centre. Consequently, the federal subjects were divided into reserved subjects and transferred subjects. However, this provision of the Act did not come into operation at all.

Statement 2 is incorrect: It introduced bicameralism in six out of eleven provinces and not in all provinces. Thus, the legislatures of Bengal, Bombay, Madras, Bihar, Assam and the United Provinces were made bicameral, consisting of a legislative council (upper house) and a legislative assembly (lower house). However, many restrictions were placed on them.

Statement 3 is correct: The Act abolished the Council of India, which was an advisory body created by the 1858 Act to assist the Secretary of State for India.

Other features of this Act were as follows:

- It provided for the establishment of an All-India Federation consisting of provinces and princely states as units. The Act divided the powers between the Centre and units in terms of three lists—Federal List (for Centre, with 59 items), Provincial List (for provinces, with 54 items) and the Concurrent List (for both, with 36 items). Residuary powers were given to the Viceroy. However, the federation never came into being as the princely states did not join it.
- It further extended the principle of communal representation by providing separate electorates for

depressed classes (Scheduled Castes), women and labour (workers).

- It extended the franchise. About 10 per cent of the total population got the voting right.
- It provided for the establishment of a Reserve Bank of India to control the currency and credit of the country.
- It provided for the establishment of not only a Federal Public Service Commission, but also a Provincial Public Service Commission and Joint Public Service Commission for two or more provinces.
- It provided for the establishment of a Federal Court, which was set up in 1937.

20. Consider the following statements:

1. The Constituent Assembly as a Legislative body was chaired by Dr Rajendra Prasad.
2. The last meeting of the Constituent Assembly of India took place on January 24, 1950.
3. Sir B.N. Rao was the Secretary to the Constituent Assembly.

How many of the above statement(s) is/are incorrect?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (b)

Statement 1 is incorrect: The Assembly was assigned two separate functions, that is, making of a Constitution for free India and enacting ordinary laws for the country. These two tasks were to be performed on separate days. Thus, the Assembly became the first Parliament of free India (Dominion Legislature). Whenever the Assembly met as the Constituent body, it was chaired by Dr. Rajendra Prasad and when it met as the legislative body, it was chaired by G V Mavlankar. These two functions continued till November 26, 1949, when the task of making the Constitution was over.

Statement 2 is correct: The Constitution makers had gone through the Constitutions of about 60 countries, and the Draft Constitution was considered for 114 days. On January 24, 1950, the Constituent Assembly held its final session. It however, did not end and continued as the provisional Parliament of India from January 26, 1950, till the formation of a new Parliament.

Statement 3 is incorrect: Sir B.N. Rau was appointed as the Constitutional advisor (Legal advisor) to the Constituent Assembly. H.V.R. Iyengar was the Secretary to the Constituent Assembly.

21. Consider the following pairs:

	Major committees	Chairman
1.	Union Powers Committee	Sardar Patel
2.	Provincial Constitution Committee	Jawaharlal Nehru
3.	Steering Committee	Rajendra Prasad
4.	Drafting Committee	B.R. Ambedkar

How many pairs given above are correctly matched?

- (a) Only one pair (b) Only two pairs
(c) Only three pairs (d) All four pairs

Ans: (b)

The Constituent Assembly appointed a total of 22 committees to deal with different tasks of Constitution making. Out of these, Eight were major committees and the others were minor committees.

Major Committees:

- ☐ Drafting Committee – B.R. Ambedkar
- ☐ Union Power Committee – Jawaharlal Nehru
- ☐ Union Constitution Committee – Jawaharlal Nehru
- ☐ Provincial Constitution Committee – Vallabhbhai Patel
- ☐ Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas – Vallabhbhai Patel. This committee had the following sub-committees:
 - a. Fundamental Rights Sub-Committee – J. B. Kripalani
 - b. Minorities Sub-Committee – Harendra Coomar Mookerjee,
 - c. North-East Frontier Tribal Areas and Assam Excluded & Partially Excluded Areas Sub-Committee – Gopinath Bordoloi
 - d. Excluded and Partially Excluded Areas (Apart from those in Assam) Sub-Committee – A V Thakkar
- ☐ Rules of Procedure Committee – Rajendra Prasad
- ☐ States Committee (Committee for negotiating with states) – Jawaharlal Nehru
- ☐ Steering Committee – Rajendra Prasad

22. Consider the following statements with reference to the Objectives Resolution:

1. It was moved by Dr. B.R. Ambedkar during the Constituent Assembly debates.
2. It was adopted with a divided opinion by the Constituent Assembly.
3. It proclaimed India as an "Independent Sovereign Republic".

How many of the statements given above are **incorrect**?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (b)

Statement 1 is incorrect: Objectives Resolution was moved by Jawaharlal Nehru. Nehru said it was "something more than a resolution. It is a declaration, a firm resolve, a pledge, an undertaking and for all of us a dedication".

Statement 2 is incorrect: Objectives Resolution was unanimously adopted by the Constituent Assembly on 22 January 1947.

Statement 3 is correct: The Objectives Resolution proclaimed India as an "Independent Sovereign Republic," laying the foundation for the Preamble of the Indian Constitution.

23. Which of the following provisions is **incorrect** with reference to the Indian Independence Act of 1947?

- (a) It empowered the Constituent Assemblies of the two dominions to repeal any Act enacted by the British Parliament.
- (b) It abolished the office of Viceroy for both the dominions of India and Pakistan.
- (c) The Act transferred the functions of the Secretary of State for India to the Secretary of State for Commonwealth Affairs.
- (d) It provided for the establishment of an All-India Federation consisting of provinces and princely states.

Ans: (d)

After the declaration of British Prime Minister Clement Atlee about the end of British rule in India by June 30, 1948, the Muslim League started an agitation demanding the partition of the country. As a result, on June 3, 1947, Lord Mountbatten, the then Viceroy of India, put forth the partition plan known as the Mountbatten Plan. The plan was accepted by the Congress and the Muslim League. The Indian Independence Act of 1947 was enacted to give effect to the Plan.

The features of this Act were as follows:

- ☐ It ended British rule in India and declared India as an independent and sovereign state from August 15, 1947.
- ☐ It provided for the partition of India and the creation of two independent dominions of India and Pakistan with the right to secede from the British Commonwealth.
- ☐ It empowered the Constituent Assemblies of the two dominions to frame and adopt any constitution for their respective nations and to repeal any Act of the British Parliament, including the Independence Act itself. **Hence Option (a) is correct.**
- ☐ It abolished the office of Viceroy and provided, for each dominion, a governor general, who was to be appointed by the British King on the advice of the dominion cabinet. His Majesty's Government in Britain was to have no responsibility with respect to the Government of India or Pakistan. **Hence Option (b) is correct.**
- ☐ It abolished the office of the Secretary of State for India and transferred his functions to the Secretary of State for Commonwealth Affairs. **Hence Option (c) is correct.**
- ☐ It proclaimed the lapse of British paramountcy over the Indian princely states and treaty relations with tribal areas from August 15, 1947.
- ☐ It granted freedom to the Indian princely states either to join the Dominion of India or the Dominion of Pakistan or to remain independent.

Government of India Act of 1935 provided for the establishment of an All-India Federation consisting of provinces and princely states as units. **Hence Option (d) is incorrect.**

2

Making of the Constitution

OBJECTIVE QUESTIONS FOR PRACTICE

1. Consider the following statements regarding a Constituent Assembly:

1. The idea of a Constituent Assembly for India was put forward by M.N. Roy for the first time.
2. It was constituted under the scheme formulated by the Cabinet Mission Plan.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans: (c)

Statement 1 is correct: M.N. Roy was a pioneer of the communist movement in India. In 1934, he put forward the idea of a Constituent Assembly for India for the first time. In 1935, the Indian National Congress (INC), for the first time, officially demanded a Constituent Assembly to frame a Constitution for India. In 1938, Jawaharlal Nehru, on behalf of the INC declared that 'the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of adult franchise.

Statement 2 is correct: The Constituent Assembly was constituted in November 1946 under the scheme formulated by the Cabinet Mission Plan. While it rejected the idea of two Constituent Assemblies, it put forth a scheme for the Constituent Assembly which more or less satisfied the Muslim League.

2. In the context of the Constituent Assembly of India, consider the following statements:

1. The idea of the Constituent assembly was pioneered in the writings of Aurobindo Ghosh.
2. The demand of constituent assembly was first accepted in principle by the British Government in 'Cripps Mission'.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans: (d)

Jawaharlal Nehru in 1938 declared that the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected based on adult franchise.

Statement 1 is incorrect: In 1934, the idea of a Constituent Assembly for India was put forward for the first time by M.N. Roy. Aurobindo is known as the 'Prophet of Indian nationalism'. Aurobindo Ghosh didn't endorse the idea of the Constituent Assembly for India.

Statement 2 is incorrect: One of the key proposals of the Cripps Mission was also the promise of a Constituent Assembly after the war, which would be elected by the Indian people to draft a new constitution for India. However, the demand for a Constituent Assembly was first accepted in principle by the British Government in the 'August Offer' of 1940. The Constituent Assembly was constituted on the recommendations of the cabinet mission plan.

3. Which one of the following provisions was not recommended by the Cabinet Mission Plan for the formulation of the Constituent Assembly?

- (a) Each province and princely state to be allotted seats in proportion to their population.
(b) Seats allocated to British provinces were to be divided among Muslims, Sikhs and General.
(c) Community representation was to be based on the separate electorate.
(d) Representatives of princely states were to be nominated by Viceroy.

Ans: (d)

The Constituent Assembly was constituted in November 1946 on the basis of recommendation by cabinet Mission Plan. The main recommendations were:

- The representatives of the princely states were to be nominated by the Heads of the princely states. Hence, Option (d) is incorrect.
- Each province and princely state to be allotted seats in proportion to their population. Roughly, One seat was to be allotted for every million population.

- ☐ Seats allocated to each British province were to be divided among three principal communities—Muslims, Sikhs and General, in proportion to their population.
- ☐ The representatives of each community were to be elected by members of that community in the provincial legislative assembly. Other community members were not allowed to vote in their election. This was similar to the concept of the separate electorate.

4. With reference to the representation in the Constituent Assembly, consider the following statements:

1. The Constituent Assembly represented all sections of the society, including Parsis and Indian Christians.
2. Princely states participated in the election to fill 93 seats of the Constituent Assembly.
3. Mahatma Gandhi was not a member of the Constituent Assembly.

How many of the statements given above are correct?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (b)

Statement 1 is correct: Although the Constituent Assembly was not directly elected by the people of India on the basis of Universal adult franchise, it represented all sections of the society including Hindus, Muslims, Sikhs, Parsis, Indian Christians, Anglo-Indians, SCs, STs and women.

Statement 2 is incorrect: The elections to the Constituent Assembly were held in 1946. Indian National Congress won 208 seats and Muslim league won 73. However 93 seats allotted to Princely states remained vacant as they did not participate in the election. They decided to stay away from the Constituent Assembly.

Statement 3 is correct: Mahatma Gandhi was not a member of the Constituent Assembly. Although he was influential in the independence movement, he did not participate in the Assembly. He decided to stay away from political associations and believed in Gram panchayats.

5. Consider the following personalities:

1. N. Gopalaswamy Ayyangar
2. Dr. B.R. Ambedkar
3. Dr. K.M. Munshi

How many of the above were members of the drafting committee in the Indian Constituent Assembly?

- (a) Only one (b) Only two
(c) All three (d) None

Ans: (c)

Among all the committees of the Constituent Assembly, the most important was the Drafting Committee, set up on August 29, 1947. It was this committee that was entrusted with the task of preparing a draft of the new Constitution. It consisted of seven members. They were:

1. Dr. B.R. Ambedkar (Chairman)
2. N. Gopalaswamy Ayyangar
3. Alladi Krishnaswamy Ayyar
4. Dr. K.M. Munshi
5. Syed Mohammad Saadullah
6. N. Madhava Rau (He replaced B.L. Mitter, who resigned due to ill-health.)
7. T.T. Krishnamachari (He replaced D.P. Khaitan, who died in 1948)

A brief overview of the proceedings of the Drafting Committee:

- ☐ The Drafting Committee, after taking into consideration the proposals of the various committees, prepared the first draft of the Constitution of India, which was published in February 1948.
- ☐ The people of India were given eight months to discuss the draft and propose amendments.
- ☐ In light of the public comments, criticisms, and suggestions, the Drafting Committee prepared a second draft, which was published in October 1948.
- ☐ The Drafting Committee took less than six months (sat only for 141 days) to prepare its draft.

6. Consider the following statements:

1. The draft Constitution provided for only two lists of subjects: Union and State.
2. The Union had control over minerals and key industries.
3. The states were allowed to levy and collect certain taxes, such as the tax on bottled liquor.

Which of the statements given above is/are correct?

- (a) 1 and 2 only (b) 3 only
(c) 2 and 3 only (d) 1, 2 and 3

Ans: (c)

Statement 1 is incorrect: The Draft Constitution provided for three lists of subjects: Union, State, and Concurrent. The subjects in the first list were to be the preserve of the Central Government, while those in the second list were vested with the states. As for the third list, here the Centre and the state shared responsibility.

Statement 2 is correct: The Union had control over minerals and key industries. Besides, Article 356 gave the Centre the power to take over a state administration on the recommendation of the Governor.

Statement 3 is correct: The Constitution also mandated a complex system of fiscal federalism. In the case of some taxes (for instance, customs duties and company taxes), the Centre retained all the proceeds; in other cases (such as income tax and excise duties) it shared them with the states; in still other cases (for instance, estate duties) it assigned them wholly to the states. The states, meanwhile, could levy and collect certain taxes on their own which included land and property taxes, sales taxes, and the hugely profitable tax on bottled liquor.

7. Consider the following statements with respect to Constituent Assembly:

1. The symbol of the Constituent Assembly was Elephant.
2. The original Constitution was handwritten in italic style.
3. B.R. Ambedkar was the chief draftsman of the Constitution in the Constituent Assembly.
4. H.V.R. Iyengar was the secretary to the Constituent Assembly.

How many of the statements given above are correct?

- (a) Only one (b) Only two
(c) Only three (d) All four

Ans: (c)

The Constituent Assembly assumed the task of formulating the Constitution for India. It also served as the law making body till the constitution of first lok sabha. Some of the facts related to the Constituent Assembly are:

- ❑ Elephant was adopted as the symbol of the Constituent Assembly. Hence, Statement 1 is correct.
- ❑ Prem Behari Narain Raizada was the calligrapher of the Indian Constitution. The original constitution was handwritten by him in a flowing italic style. Hence, Statement 2 is correct.
- ❑ S. N. Mukerjee was the chief draftsman of the Constitution in the Constituent Assembly. B.R. Ambedkar was the chairman of the drafting committee of the Constitution. Hence, Statement 3 is incorrect.
- ❑ V.R. Iyengar was the secretary to the Constituent Assembly. Hence, Statement 4 is correct.

8. With reference to Constituent Assembly of India, consider the following statements:

1. The first meeting of the assembly took place before independence of India.
2. The first President of the assembly was its oldest member by following the practice prevalent in France.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans: (c)

Statement 1 is correct: The Constituent Assembly held its first meeting on December 9, 1946. The Muslim League boycotted the meeting and insisted on a separate state of Pakistan. The meeting was attended by only 211 members. India became independent in 1947.

Statement 2 is correct: Dr. Sachchidananda Sinha was the oldest member of the Constituent Assembly. He was elected as the temporary President of the Assembly by following French practice. Later, Dr. Rajendra Prasad was elected as the President of the Assembly. So before Rajendra Prasad, Dr. Sachchidananda Sinha became the President of the assembly.

9. Consider the following statements:

Statement-I: Dr. Sachchidanand Sinha was the provisional President of the Constituent Assembly when it met for the first time.

Statement-II: Dr. Rajendra Prasad was elected as the President of the Constituent Assembly on December 11, 1946, succeeding Dr. Sachchidanand Sinha.

Which one of the following is correct with respect to the above statements?

- (a) Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
(b) Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I
(c) Statement-I is correct but Statement-II is incorrect
(d) Statement-I is incorrect but Statement-II is correct

Ans: (b)

Statement-I is correct: Dr. Sachchidanand Sinha was indeed appointed as the provisional President of the Constituent Assembly for its first meeting on December 9, 1946. Given that Dr. Sinha was the oldest member of the Assembly, J.B. Kripalani proposed his appointment.

Statement-II is correct: On December 11, 1946, Dr. Rajendra Prasad was elected as the President of the Constituent Assembly. This election marked a transition from the provisional presidency of Dr. Sachchidanand Sinha to a more permanent leadership under Dr. Prasad, who played a crucial role in steering the Assembly in drafting the Constitution of India. However, Statement-II is not a direct explanation for Statement-I. While both statements are correct and related, they represent different events in the sequence of the Constituent Assembly's leadership.

10. Consider the following functions:

1. Ratification of India's membership of the Commonwealth.
2. Adoption of National song.
3. Adoption of National Anthem.
4. Election of the first President of India.

How many of the above functions were performed by the Constituent Assembly of India?

- (a) Only one (b) Only two
(c) Only three (d) All four

Ans: (d)

In addition to the making of the Constitution and enacting of ordinary laws, the Constituent Assembly also performed the following functions:

- ❑ It ratified India's membership of the Commonwealth in May 1949.
- ❑ It adopted the national flag on July 22, 1947.
- ❑ It adopted the national anthem on January 24, 1950.
- ❑ It adopted the national song on January 24, 1950.
- ❑ It elected Dr. Rajendra Prasad as the first President of India on January 24, 1950. Hence, points 1, 2, 3 and 4 are correct.